MUTUAL NON-DISCLOSURE AGREEMENT

PicksDb LLC — Ronald Kruck

Fees · Membership / Equity · Deal Negotiation · Company Financials · Governance
Effective Date: April 24, 2026

1. PARTIES & DISTINCTION

This Mutual Non-Disclosure Agreement ("Agreement") is entered into as of April 24, 2026 ("Effective Date") by and between:

PicksDb LLC, a limited liability company organized under the laws of the State of Colorado, with its principal place of business in the State of Colorado, and sole owner and operator of the PicksDb mobile application distributed on Apple's iOS App Store ("Company"), acting through its authorized representative Austin John Foster Duffy, Founder & Chief Executive Officer; and

Ronald Kruck, an individual ("Kruck").

Company and Kruck are each referred to as a "Party" and collectively as the "Parties."

IMPORTANT DISTINCTION — PicksDb is a consumer mobile application available on Apple's iOS App Store. PicksDb LLC is the legal limited liability company that owns, operates, and controls the PicksDb platform and all related business operations, intellectual property, revenue, and financial affairs. This Agreement is between Kruck and PicksDb LLC (the Company), and governs confidential business discussions about the company itself, not merely the consumer application.

2. PURPOSE & SCOPE

The Parties intend to engage in detailed, confidential discussions regarding PicksDb LLC's business (the "Purpose"), including without limitation:

(a) Revenue model, fee structures, and pricing — including platform fees charged to creators, subscription pricing tiers, payment-processing economics (including Stripe and Apple commissions), transfer fees, in-app purchase economics, and the complete breakdown of how PicksDb LLC generates revenue from the PicksDb platform;

(b) Membership and economic rights, governance, and equity-style arrangements — including potential membership or equity positions, consent or voting rights, vesting schedules, capitalization table structures, operating agreements and investor-style agreements, anti-dilution provisions, drag-along and tag-along rights, preemptive rights, and the rights and obligations that may attach to any ownership or economic interest in PicksDb LLC;

(c) Deal negotiation and terms — including potential partnership terms, investment terms, compensation structures, revenue-sharing arrangements, equity grants, advisory roles, board seats, and any related commercial, corporate, or employment agreements the Parties may consider;

(d) Financial information — including but not limited to revenue, gross margin, expenses, projections, burn rate, cash runway, bank balances, payment-processor statements, tax filings, user metrics, creator metrics, subscriber counts, retention data, and any other financial or operating data of the Company;

(e) Business strategy and product — including product roadmaps, proprietary algorithms, engineering architecture, source code, marketing plans, creator-acquisition strategies, competitive positioning, partnership pipelines, and expansion plans.

3. DEFINITION OF CONFIDENTIAL INFORMATION

"Confidential Information" means any and all non-public information disclosed by either Party ("Disclosing Party") to the other Party ("Receiving Party") in connection with the Purpose, in any form or medium (oral, written, electronic, visual, or otherwise), whether or not marked or designated as "confidential" at the time of disclosure, that relates to the Disclosing Party's business, finances, operations, technology, strategy, customers, users, or affairs — including every category described in the Purpose above. Without limiting the foregoing, Confidential Information also includes: (i) the existence, terms, and conditions of this Agreement; (ii) the fact that the Parties are in discussions or negotiations; (iii) the identity of any other parties with whom either Party is or may be in discussions; and (iv) any analyses, compilations, notes, summaries, memoranda, or derivative materials prepared by the Receiving Party that contain, reflect, or are based upon Confidential Information.

4. OBLIGATIONS OF THE RECEIVING PARTY

The Receiving Party shall:

(a) Use Confidential Information solely and exclusively for the Purpose and for no other reason whatsoever;

(b) Hold all Confidential Information in strict confidence and protect it using at least the same degree of care it uses to protect its own most sensitive confidential information, and in no event less than a reasonable standard of care;

(c) Not disclose, publish, post, transmit, discuss, hint at, reference, or make available — directly or indirectly — any Confidential Information to any third party, including without limitation friends, family members, romantic partners, colleagues, business associates, social-media platforms, online forums, podcasts, media outlets, journalists, other potential investors or partners, competing businesses, or any other person or entity not a party to this Agreement, without the prior express written consent of the Disclosing Party;

(d) Restrict access to Confidential Information to only those of the Receiving Party's legal counsel, financial advisors, or accountants (collectively, "Representatives") who (i) have a strict, demonstrable need to know for the Purpose, and (ii) are bound by written confidentiality obligations at least as protective as this Agreement. The Receiving Party shall be responsible and liable for any breach of this Agreement by its Representatives;

(e) Not use any Confidential Information — directly or indirectly — to create, develop, fund, advise, invest in, operate, or otherwise support any product, platform, service, or business that competes with or is substantially similar to PicksDb or any product or service offered by the Company;

(f) Not reverse-engineer, decompile, or disassemble any software, technology, or technical information disclosed under this Agreement;

(g) Promptly notify the Disclosing Party in writing (and in no event later than forty-eight (48) hours) upon becoming aware of any unauthorized access, use, disclosure, loss, or compromise of Confidential Information.

5. NON-DISCLOSURE OF POSITION, RELATIONSHIP & REVENUE MODEL

This Agreement is fully mutual. Neither Party shall publicly disclose, or disclose to any third party, its position in or relationship with the other Party — including any equity interest, advisory role, board seat, revenue-sharing arrangement, partnership status, negotiating status, or the terms of any contemplated or pending transaction — unless and until both Parties have executed a definitive written agreement that expressly authorizes such disclosure, or the Disclosing Party provides specific prior written consent for a particular disclosure.

For the avoidance of doubt:

(a) Kruck shall not tell, suggest to, or inform any person or entity — by any means — how PicksDb LLC makes money, the Company's fee structure, revenue model, revenue figures, financial position, capitalization, the terms of any deal being discussed or negotiated, or the nature of Kruck's relationship with or role at PicksDb LLC, unless specifically authorized in writing by the Company on a case-by-case basis.

(b) The Company (including Austin John Foster Duffy in his personal capacity and on behalf of the Company) shall not disclose, share, or make available to any third party any personal information, business interests, professional connections, contacts, relationships, financial information, business ventures, strategies, investment activities, or any other non-public information that Kruck shares with or makes known to the Company during the course of discussions under this Agreement, unless specifically authorized in writing by Kruck on a case-by-case basis. This includes, without limitation, the identity and nature of Kruck's personal and professional network, any business opportunities Kruck introduces, and any information about Kruck's other business activities or affiliations.

6. NON-CIRCUMVENTION

During the term of this Agreement and for a period of two (2) years following its termination or expiration, neither Party shall, directly or indirectly, circumvent, avoid, bypass, or attempt to circumvent the other Party in order to gain any benefit from the Confidential Information, including by contacting, dealing with, or soliciting any of the other Party's business contacts, partners, creators, investors, users, or customers that were introduced or became known through the discussions contemplated by this Agreement, without the prior written consent of the other Party.

7. NON-SOLICITATION

During the term of this Agreement and for a period of one (1) year following its termination or expiration:

(a) Kruck shall not, directly or indirectly, solicit, recruit, hire, or attempt to solicit, recruit, or hire any employee, contractor, advisor, or consultant of PicksDb LLC for any purpose, or induce or encourage any such individual to terminate or reduce their relationship with the Company.

(b) The Company shall not, directly or indirectly, solicit, recruit, hire, or attempt to solicit, recruit, or hire any employee, contractor, advisor, agent, or business associate of Kruck for any purpose, or induce or encourage any such individual to terminate or reduce their relationship with Kruck.

8. EXCLUSIONS FROM CONFIDENTIAL INFORMATION

Confidential Information does not include information that the Receiving Party can demonstrate by clear and convincing written evidence: (i) was publicly available or in the public domain at the time of disclosure through no fault, act, or omission of the Receiving Party; (ii) becomes publicly available after disclosure through no breach of this Agreement by the Receiving Party; (iii) was already lawfully known to the Receiving Party, without any obligation of confidentiality, prior to disclosure by the Disclosing Party; (iv) was independently developed by the Receiving Party without any access to, reference to, or use of the Disclosing Party's Confidential Information; or (v) was lawfully received by the Receiving Party from a third party who was not under any obligation of confidentiality to the Disclosing Party with respect to such information.

Compelled Disclosure. If the Receiving Party is legally compelled by valid court order, subpoena, or governmental regulation to disclose Confidential Information, such disclosure shall not constitute a breach, provided the Receiving Party: (A) gives the Disclosing Party prompt written notice of such requirement (to the extent legally permitted) before any disclosure is made; (B) cooperates with the Disclosing Party's efforts to obtain a protective order or other appropriate remedy; and (C) discloses only that portion of Confidential Information that is legally required and takes all reasonable steps to preserve the confidential treatment of the disclosed information.

9. TERM & SURVIVAL OF OBLIGATIONS

This Agreement and all confidentiality obligations herein shall remain in full force and effect for a period of five (5) years from the Effective Date, or until the Parties execute a definitive written agreement that expressly supersedes and replaces the confidentiality terms herein (a "Definitive Agreement"), whichever occurs first. Upon expiration or termination, the obligations of confidentiality shall survive with respect to any Confidential Information disclosed during the term for an additional period of three (3) years, or for so long as such information qualifies as a trade secret under the Colorado Uniform Trade Secrets Act (C.R.S. § 7-74-101 et seq.) and/or the federal Defend Trade Secrets Act of 2016 (18 U.S.C. § 1836 et seq.), whichever period is longer. If no Definitive Agreement is reached, all obligations of this Agreement survive termination of discussions as stated herein.

10. DEFEND TRADE SECRETS ACT NOTICE

Pursuant to the Defend Trade Secrets Act of 2016 (18 U.S.C. § 1833(b)), the Receiving Party is hereby notified that an individual shall not be held criminally or civilly liable under any federal or state trade secret law for the disclosure of a trade secret that: (A) is made (i) in confidence to a federal, state, or local government official, either directly or indirectly, or to an attorney, and (ii) solely for the purpose of reporting or investigating a suspected violation of law; or (B) is made in a complaint or other document filed in a lawsuit or other proceeding, if such filing is made under seal. An individual who files a lawsuit for retaliation by an employer for reporting a suspected violation of law may disclose the trade secret to the attorney of the individual and use the trade secret information in the court proceeding, if the individual files any document containing the trade secret under seal and does not disclose the trade secret, except pursuant to court order.

11. RETURN OR DESTRUCTION OF MATERIALS

Upon written request by the Disclosing Party, or upon termination of discussions if no Definitive Agreement is reached, the Receiving Party shall within seven (7) business days: (a) return to the Disclosing Party all originals and copies of Confidential Information in its possession or control, including all documents, files, notes, summaries, analyses, and derivative materials in any medium; or (b) permanently destroy all such materials using commercially reasonable methods and certify such destruction in writing signed by the Receiving Party or an authorized officer. Notwithstanding the foregoing, the Receiving Party may retain copies of Confidential Information to the extent required by applicable law or regulation or by its bona fide document-retention policies, provided such retained copies remain subject to all terms of this Agreement for so long as they are retained.

12. REMEDIES

Each Party acknowledges and agrees that: (a) the Confidential Information is unique and valuable, and a breach of this Agreement would cause irreparable injury and harm for which monetary damages alone would be an insufficient remedy; (b) in addition to all other remedies available at law or in equity, the non-breaching Party shall be entitled to seek and obtain temporary, preliminary, and permanent injunctive relief, specific performance, and any other equitable remedy, without the necessity of proving actual damages and without the requirement of posting any bond or other security; (c) the breaching Party shall be liable for all actual damages, consequential damages (to the extent foreseeable), and costs incurred by the non-breaching Party as a result of the breach; and (d) the breaching Party shall reimburse the non-breaching Party for all reasonable attorneys' fees, expert witness fees, court costs, and other expenses of enforcement incurred in connection with any action to enforce this Agreement.

13. INDEMNIFICATION

Each Party (as "Indemnitor") agrees to indemnify, defend, and hold harmless the other Party and its officers, directors, employees, agents, and successors (as "Indemnitees") from and against any and all claims, losses, liabilities, damages, judgments, settlements, costs, and expenses (including reasonable attorneys' fees) arising out of or relating to: (a) any breach or alleged breach of this Agreement by the Indemnitor or its Representatives; or (b) any unauthorized use or disclosure of Confidential Information by the Indemnitor or its Representatives.

14. NO OBLIGATION TO TRANSACT

Nothing in this Agreement shall be construed as: (a) an obligation of either Party to enter into any Definitive Agreement, transaction, or business relationship; (b) a commitment to make or accept any investment, equity grant, or compensation; (c) a grant of any license, right, or interest in any intellectual property; or (d) a limitation on either Party's right to conduct its business or engage with third parties, subject to the restrictions on Confidential Information, non-circumvention, and non-solicitation set forth herein. Either Party may terminate discussions at any time, for any reason or no reason, without liability — except that the surviving confidentiality, non-circumvention, and non-solicitation obligations shall remain in full force and effect.

15. GOVERNING LAW, JURISDICTION & JURY WAIVER

This Agreement shall be governed by and construed in accordance with the laws of the State of Colorado, without regard to its conflict-of-laws principles. The Parties irrevocably consent to the exclusive personal jurisdiction and venue of the state and federal courts located in the State of Colorado for any action, suit, or proceeding arising out of or relating to this Agreement. Each Party hereby irrevocably waives any objection to jurisdiction or venue on the grounds of inconvenient forum or otherwise. EACH PARTY HEREBY KNOWINGLY, VOLUNTARILY, AND IRREVOCABLY WAIVES ANY AND ALL RIGHTS TO A TRIAL BY JURY IN ANY ACTION, PROCEEDING, OR COUNTERCLAIM ARISING OUT OF OR RELATING TO THIS AGREEMENT.

16. GENERAL PROVISIONS

Entire Agreement. This Agreement constitutes the entire understanding between the Parties with respect to the subject matter hereof and supersedes all prior or contemporaneous negotiations, representations, agreements, and understandings, whether written or oral, relating to such subject matter.

Amendments. This Agreement may not be modified, amended, or waived except by a written instrument duly executed by both Parties.

Waiver. No failure or delay by either Party in exercising any right or remedy under this Agreement shall operate as a waiver thereof, nor shall any single or partial exercise of any right or remedy preclude any other or further exercise of that or any other right or remedy.

Assignment. Neither Party may assign or transfer this Agreement or any rights or obligations hereunder without the prior written consent of the other Party, except that the Company may assign this Agreement to a successor in connection with a merger, acquisition, or sale of all or substantially all of its assets.

Severability. If any provision of this Agreement is held invalid, illegal, or unenforceable by a court of competent jurisdiction, the remaining provisions shall remain in full force and effect, and the invalid provision shall be modified to the minimum extent necessary to make it valid, legal, and enforceable while preserving the Parties' original intent.

Counterparts. This Agreement may be executed in one or more counterparts, each of which shall be deemed an original and all of which together shall constitute one and the same instrument. Electronic signatures (including DocuSign, Adobe Sign, scanned PDF, or typed /s/) shall have the same legal force and effect as original ink signatures.

Notices. All notices required or permitted under this Agreement shall be in writing and shall be deemed delivered when sent by email with confirmation of receipt, or by certified mail (return receipt requested), to the addresses provided by each Party.

SIGNATURES

IN WITNESS WHEREOF, the Parties have executed this Mutual Non-Disclosure Agreement as of the Effective Date first written above. By signing below, each Party acknowledges that they have read, understood, and agree to be legally bound by every term and condition of this Agreement.

PICKSDB LLC

By: Austin John Foster Duffy
Title: Founder & Chief Executive Officer

Signature: Austin John Foster Duffy
Date: April 24, 2026

RONALD KRUCK

Printed Name: Ronald Kruck

Signature: ____

Date: ____

This document was prepared by PicksDb LLC and is not a substitute for independent legal advice. Each Party is strongly encouraged to seek review by qualified legal counsel before executing this Agreement.